EXCLUSIVE BRAND PARTNERSHIP, SYNCHRONIZATION, MERCHANDISING AND DIGITAL RIGHTS AGREEMENT

THIS EXCLUSIVE BRAND PARTNERSHIP, SYNCHRONIZATION, MERCHANDISING AND DIGITAL RIGHTS AGREEMENT (the "Agreement") is made and entered into this 14th day of November, 2026 (the "Effective Date"),

BY AND BETWEEN:

1. APEXPESA GLOBAL GAMING & ENTERTAINMENT LIMITED, a company registered in the Republic of Kenya (Registration No. PVT-2021-994812) and operating as a subsidiary of ApexHoldings International Ltd (BVI), with its principal East African offices at Delta Corner Tower, 18th Floor, Chiromo Road, Westlands, P.O. Box 66109-00800, Nairobi, Kenya (hereinafter referred to as the "Company" or "Brand", which expression shall include its parent companies, subsidiaries, licensees, successors, and assigns throughout the world);

AND

2. JOHN DOE, an adult Kenyan citizen and recording, performing, and songwriting artist professionally known as "John Doe", of P.O. Box 45102-00100, Nairobi, Kenya (hereinafter referred to as the "Artist" or "Endorser").

RECITALS

A. WHEREAS, the Company operates digital sports entertainment, interactive gaming, mobile lifestyle platforms, and youth culture events across Africa and globally under the "ApexPesa" and "ApexPlay" brands.

B. WHEREAS, the Company desires to secure the exclusive endorsement, musical composition, master recording, synchronization, merchandising, and biometric digital simulation rights of the Artist upon the comprehensive terms set out in this Agreement.

C. WHEREAS, the Artist acknowledges that the promotional exposure afforded by the Company's marketing campaigns constitutes valuable consideration in addition to the monetary provisions set forth herein.

NOW, THEREFORE, in consideration of the premises and the mutual covenants herein contained, the Parties hereby agree as follows:

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1. DEFINITIONS AND INTERPRETATION

1.1 "Ab Initio" means from the very moment of creation, inception, fixation, or recording.

1.2 "Artist Attributes" means the Artist's legal name ("John Doe"), stage name, nickname, autograph, signature, voice, vocal timbre, ad-libs, catchphrases, likeness, photograph, caricature, biometric facial and vocal data, persona, and biographical information.

1.3 "Campaign Works" means all musical compositions, lyrics, beats, vocal stems, master sound recordings (including the flagship track "Apex Winner's Anthem"), music videos, behind-the-scenes footage, photographs, and social media content created, performed, or delivered by the Artist during the Term, together with any other musical works captured under Clause 5.5.

1.4 "Conversion Threshold" means the verified acquisition of not less than two hundred and fifty thousand (250,000) new, unique, first-time depositing users on the Company's platform who register using the Artist's dedicated tracking code (JDOE254) and wager a minimum of KES 500 each within ninety (90) days of campaign launch.

1.5 "Digital Twin and AI Rights" means the unrestricted right to analyze, train machine-learning models upon, synthesize, clone, and algorithmically generate new audio, visual, and audiovisual performances simulating the Artist's voice, singing style, and physical likeness using artificial intelligence or synthetic media technologies now known or hereafter devised.

1.6 "Net Sponsorship Receipts" means the portion of the Headline Sponsorship Fee remaining after the Company recoups and deducts one hundred percent (100%) of all Campaign Production and Media Costs as defined in Clause 14.3, agency management fees of twenty percent (20%), and all applicable taxes.

1.7 "Restricted Competitive Sectors" means any business, brand, charity, or platform operating directly or indirectly in any of the following categories: sports betting, gaming, lotteries, casinos, fantasy sports, financial technology (fintech), mobile money transfer services, commercial banking, microfinance, digital lending apps, telecommunications network operators, mobile handsets, cryptocurrency, alcoholic and non-alcoholic beverages, energy drinks, and streaming entertainment applications.

1.8 "Territory" means the Universe (worldwide, including all digital, satellite, metaverse, and terrestrial media).

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2. EXCLUSIVE ENGAGEMENT AND OBLIGATIONS

2.1 On-Call Availability. The Artist shall serve as an exclusive Brand Endorser for the Company throughout the Term and shall make himself available on an "on-call, first-priority" basis for all studio recordings, video shoots, regional roadshows, VIP hospitality appearances, and press conferences scheduled by the Company upon forty-eight (48) hours' notice.

2.2 Priority Over Music Career. In the event of any scheduling conflict between a Company activation and the Artist's independent recording sessions, club bookings, or third-party concerts, the Company's activation shall take absolute priority, and the Artist shall reschedule or cancel his conflicting engagement at his own sole cost and liability.

2.3 Social Media Control and Credential Access. During the Term, the Artist shall grant the Company's digital marketing agency administrative "Editor/Creator" posting access to the Artist's official Instagram, TikTok, YouTube, X (formerly Twitter), and Facebook accounts to enable direct publishing and ad-boosting of Campaign Works, and shall permanently feature "Official Ambassador @ApexPesa" in the first line of all social media biographies.

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3. HEADLINE COMPENSATION STATEMENT

3.1 Headline Sponsorship Fee. Subject to the terms, conditions, recoupment rules, and performance gates set forth in this Agreement (and in particular Clause 14 below), the Company agrees to allocate a Headline Sponsorship Fee of Kenya Shillings One Million Two Hundred Thousand (KES 1,200,000) for the Initial Period (the "Headline Sponsorship Fee").

3.2 Initial Signing Advance. Within thirty (30) business days following the full execution of this Agreement and delivery of the master audio files for the "Apex Winner's Anthem", the Company shall advance to the Artist twenty-five percent (25%) of the Headline Sponsorship Fee, being Kenya Shillings Three Hundred Thousand (KES 300,000) (the "Signing Advance"), which Signing Advance shall be fully recoupable in accordance with Clause 14.

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4. TERM, UNILATERAL OPTIONS AND POST-TERM LOCK-OUT

4.1 Initial Period. This Agreement shall commence on the Effective Date and remain in full force and effect for an initial period of twelve (12) months (the "Initial Period"), provided that if the Conversion Threshold has not been achieved by the last day of the twelfth month, the Initial Period shall automatically extend without additional fee until such time as the Company confirms in writing that all Deliverables and campaign metrics have been satisfied.

4.2 Unilateral Options. The Artist hereby grants to the Company three (3) separate, consecutive, and irrevocable options to extend the Term of this Agreement for additional periods of twelve (12) months each (each an "Option Period") upon the exact same financial terms as the Initial Period. Each Option Period shall be deemed automatically exercised by the Company unless the Company serves written notice of non-renewal at least fifteen (15) days prior to the expiry of the then-current period.

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5. WORK MADE FOR HIRE, PERPETUAL IP ASSIGNMENT AND CROSS-CLAUSE CAPTURE

5.1 Irrevocable Assignment Ab Initio. The Artist hereby acknowledges and agrees that all Campaign Works (including the "Apex Winner's Anthem", all underlying musical compositions, lyrics, melodies, arrangements, and Master Sound Recordings) are specially commissioned by the Company as a "Work Made for Hire". To the fullest extent permitted under Section 33 of the Copyright Act (Cap. 130, Laws of Kenya) and international copyright treaties, the Artist hereby irrevocably and unconditionally assigns, transfers, and conveys to the Company ab initio, exclusively, and in perpetuity throughout the Universe, all right, title, and interest (including all economic copyrights, neighbouring rights, publishing rights, synchronization rights, mechanical rights, and adaptation rights) in and to the Campaign Works, free from any royalty or reversionary claim whatsoever.

5.2 Perpetual Assignment of Artist Attributes. The Artist grants and assigns to the Company the perpetual, irrevocable, worldwide, royalty-free, and freely sub-licensable right to use, reproduce, edit, composite, and commercially exploit the Artist Attributes across all media (including billboards, television, radio, matatu wraps, product packaging, and in-app graphics) in perpetuity, both during and after the expiration or termination of this Agreement, without any further payment to the Artist.

5.3 Grant of Digital Twin and AI Voice Cloning Rights. Without limiting Clause 5.1 or Clause 5.2, the Artist hereby irrevocably grants the Company the perpetual, royalty-free right to exercise the Digital Twin and AI Rights using the Artist's recorded vocal stems and visual footage. The Company may generate synthetic vocal tracks, localized dialect translations, virtual concerts, and AI-generated promotional voiceovers sounding like the Artist in perpetuity without seeking the Artist's approval or paying any compensation.

5.4 Total Waiver of Moral Rights. The Artist hereby irrevocably and unconditionally waives all Moral Rights (including the right of paternity/attribution and the right of integrity to object to any distortion, mutilation, modification, or derogatory commercial context) under Section 32 of the Copyright Act (Cap. 130, Laws of Kenya) and any equivalent laws worldwide in respect of the Campaign Works and Artist Attributes.

5.5 Capture of Pre-Existing and Performed Catalogue (Override). Notwithstanding Clause 5.1 or anything to the contrary contained in this Agreement, if the Artist performs, lip-syncs, samples, interpolates, or plays any portion of any pre-existing or newly released independent song owned or controlled by the Artist during any Company roadshow, livestream, or social media post during the Term, such song and its Master Sound Recording shall automatically be deemed part of the Campaign Works, and the Company shall automatically acquire an irrevocable, perpetual, worldwide, royalty-free synchronization, master use, and Skiza ringback license in and to such song, together with fifty percent (50%) of the publishing copyright therein.

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6. MERCHANDISING AND CO-BRANDED REVENUE

6.1 Exclusive Merchandising Rights. The Company shall have the sole and exclusive right to manufacture, distribute, and sell apparel, caps, posters, digital collectibles (NFTs), and lifestyle merchandise bearing the Artist Attributes in conjunction with or independent of the Company's trademarks throughout the Universe in perpetuity. All gross and net proceeds from such merchandise sales shall belong one hundred percent (100%) to the Company, and no merchandising royalty shall be payable to the Artist.

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7. CMO ROYALTIES AND IRREVOCABLE POWER OF ATTORNEY

7.1 Assignment of CMO Royalties. The Artist hereby assigns to the Company one hundred percent (100%) of all composer, publisher, performer, and producer royalties collectible from the Music Copyright Society of Kenya (MCSK), the Kenya Association of Music Producers (KAMP), the Performers Rights Society of Kenya (PRISK), PAVRISK, and all international collection societies in respect of the Campaign Works.

7.2 Irrevocable Power of Attorney. The Artist hereby appoints the Company and its Company Secretary as the Artist's true and lawful attorney-in-fact (which appointment is coupled with an interest and is irrevocable in perpetuity) to execute, sign, and lodge in the Artist's name any Deeds of Assignment, KECOBO copyright registration forms, CMO split sheets, or litigation settlements should the Artist fail to sign the same within twenty-four (24) hours of request.

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8. MULTI-SECTOR EXCLUSIVITY AND 24-MONTH POST-TERM NON-COMPETE

8.1 Blanket Sector Exclusivity. During the Term (including all Option Periods) and for a period of twenty-four (24) months following the expiration or termination of the Term for any reason (the "Post-Term Lock-Out Period"), the Artist shall not, directly or indirectly, anywhere in the Territory:

(a) render any endorsement, musical, songwriting, live performance, influencer, or promotional services for any person or entity in the Restricted Competitive Sectors;

(b) allow his music to be synchronized or used by any entity in the Restricted Competitive Sectors; or

(c) appear at any venue, festival, television broadcast, or charity event sponsored or co-sponsored by any entity in the Restricted Competitive Sectors.

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9. MORALITY CLAUSE AND LIQUIDATED DAMAGES

9.1 Absolute Discretion Morality Trigger. If at any time the Artist is the subject of any negative blog post, social media rumour, regulatory inquiry, political controversy, or personal dispute, or if the Artist fails to maintain the vocal style, physical appearance, or public popularity expected by the Company in the Company's sole, subjective, and unreviewable determination, the Company may immediately terminate this Agreement or suspend all payments while keeping all rights and licenses granted under Clauses 5, 6, 7, and 8 in full perpetual force.

9.2 Liquidated Damages Penalties. The Artist agrees that time and brand metrics are of the essence, and that if:

(a) the Artist arrives more than thirty (30) minutes late to any scheduled studio session, shoot, or roadshow appearance;

(b) the Artist deletes, archives, or unpins any Campaign social media post at any time during or after the Term; or

(c) the Artist breaches any provision of Clause 8 (Exclusivity) or Clause 9.1 (Morality);

then the Artist shall immediately pay to the Company upon demand the sum of Kenya Shillings Five Million (KES 5,000,000) as agreed liquidated damages (and not as a penalty), in addition to refunding one hundred percent (100%) of the Signing Advance.

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10. WARRANTIES AND UNLIMITED INDEMNIFICATION

10.1 Warranties. The Artist warrants that all Campaign Works are completely original, that no third-party producer or co-writer has any claim thereto, and that the exercise of rights by the Company will not infringe any third-party right.

10.2 Unlimited Indemnity. The Artist shall indemnify, defend, and hold harmless the Company, its parent entities, shareholders, directors, and agencies from and against any and all losses, consequential damages, lost profits, reputational harm, and legal costs without any monetary cap whatsoever. The Company may withhold any sums otherwise payable to the Artist whenever any potential claim is suspected by the Company.

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11. NO AUDIT OR ACCOUNTING OBLIGATION

11.1 Waiver of Inspection Rights. The Artist acknowledges that the Company's internal user-acquisition metrics, campaign cost ledgers, and conversion tracking systems are proprietary trade secrets. Accordingly, the Company shall have no obligation to render periodic accounting statements to the Artist, and the Artist expressly waives any right to audit, inspect, or challenge the Company's books, records, production cost deductions, or Conversion Threshold calculations.

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12. TERMINATION WITHOUT CAUSE BY COMPANY ONLY

12.1 Unilateral Termination by Company. The Company may terminate this Agreement at any time without cause upon seven (7) days' written notice to the Artist. Upon such termination, the Company shall have no liability for any unpaid portion of the Headline Sponsorship Fee, and all intellectual property assignments, licenses, and post-term exclusivity covenants under Clauses 5, 6, 7, and 8 shall survive in perpetuity.

12.2 No Right of Termination by Artist. The Artist hereby waives any right to rescind, cancel, or terminate this Agreement or enjoin the exploitation of the Campaign Works for any reason whatsoever; the Artist's sole remedy for any proven breach by the Company shall be an action for direct damages capped at KES 50,000.

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13. FOREIGN GOVERNING LAW AND EXCLUSIVE LONDON ARBITRATION

13.1 Governing Law. This Agreement and any non-contractual obligations arising out of or in connection with it shall be governed by and construed exclusively in accordance with the laws of England and Wales, without regard to the laws of Kenya.

13.2 Exclusive LCIA Arbitration in London. Any dispute, controversy, or claim arising out of or relating to this Agreement shall be referred to and finally resolved by binding arbitration under the Rules of the London Court of International Arbitration (LCIA). The seat and physical venue of the arbitration shall be London, United Kingdom, before a panel of three (3) arbitrators. The Artist waives any objection to such forum on grounds of cost or inconvenience and agrees to bear one hundred percent (100%) of the initial filing and tribunal deposits required to initiate any claim against the Company.

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14. FINANCIAL RECOUPMENT AND CONDITIONAL PAYMENT OVERRIDE

14.1 Precedence of Clause 14. The provisions of this Clause 14 shall supersede and control over any conflicting financial terms elsewhere in this Agreement.

14.2 Conditional Conversion Gate Override. Notwithstanding Clause 3.1 or anything to the contrary in Schedule 1, the remaining seventy-five percent (75%) of the Headline Sponsorship Fee (being KES 900,000) is not guaranteed and shall only become earned and payable if and when the Artist achieves one hundred percent (100%) of the Conversion Threshold (250,000 verified depositing users via code JDOE254) within ninety (90) days of campaign launch. If the Conversion Threshold is not met in full within ninety (90) days, the KES 900,000 balance shall be permanently forfeited by the Artist, while all rights and assignments granted to the Company under this Agreement shall remain in full force.

14.3 100% Production & Media Recoupment. Notwithstanding Clause 3.1 or Clause 3.2, one hundred percent (100%) of all costs incurred by the Company in connection with the Campaign·including studio recording fees, music video production, director fees, dancers, wardrobe, transport, billboard printing, and digital ad-boosting expenditure (collectively, "Campaign Production and Media Costs")·shall be deemed advances to the Artist and shall be one hundred percent (100%) recoupable from the Headline Sponsorship Fee (including the Signing Advance). If Campaign Production and Media Costs exceed the sums earned by the Artist under Clause 14.2, the unrecouped balance shall constitute a debt immediately repayable by the Artist on demand or deductible from any Option Period fees.

SCHEDULE 1: CAMPAIGN DELIVERABLES

1. Master Tracks: Delivery of one (1) full-length three-minute (3:00) commercial song ("Apex Winner's Anthem") plus five (5) promotional jingle variations and raw dry vocal stems (minimum 30 minutes of clean vocal recordings for Digital Twin training).

2. Roadshows and Concerts: Twelve (12) full-day county roadshow appearances and concert performances across Kenya, Uganda, and Tanzania as directed by the Company.

3. Social Media Saturation:

- Four (4) posts per week across Instagram, TikTok, Facebook, and X throughout the Term (minimum 208 posts per year);
- Daily Instagram and TikTok Stories containing the JDOE254 betting referral link.

SIGNATURES

IN WITNESS WHEREOF, the Parties have executed this Agreement as a Deed as of the Effective Date first written above.

EXECUTED as a Deed by APEXPESA GLOBAL GAMING & ENTERTAINMENT LIMITED:

Signature: _____

Name: Viktor K. Mensah

Title: Chief Executive Officer, Africa Operations

Date: 14th November, 2026

SIGNED, SEALED AND DELIVERED by the ARTIST:

Signature: _____

Name: JOHN DOE (p/k/a "John Doe")

Date: 14th November, 2026